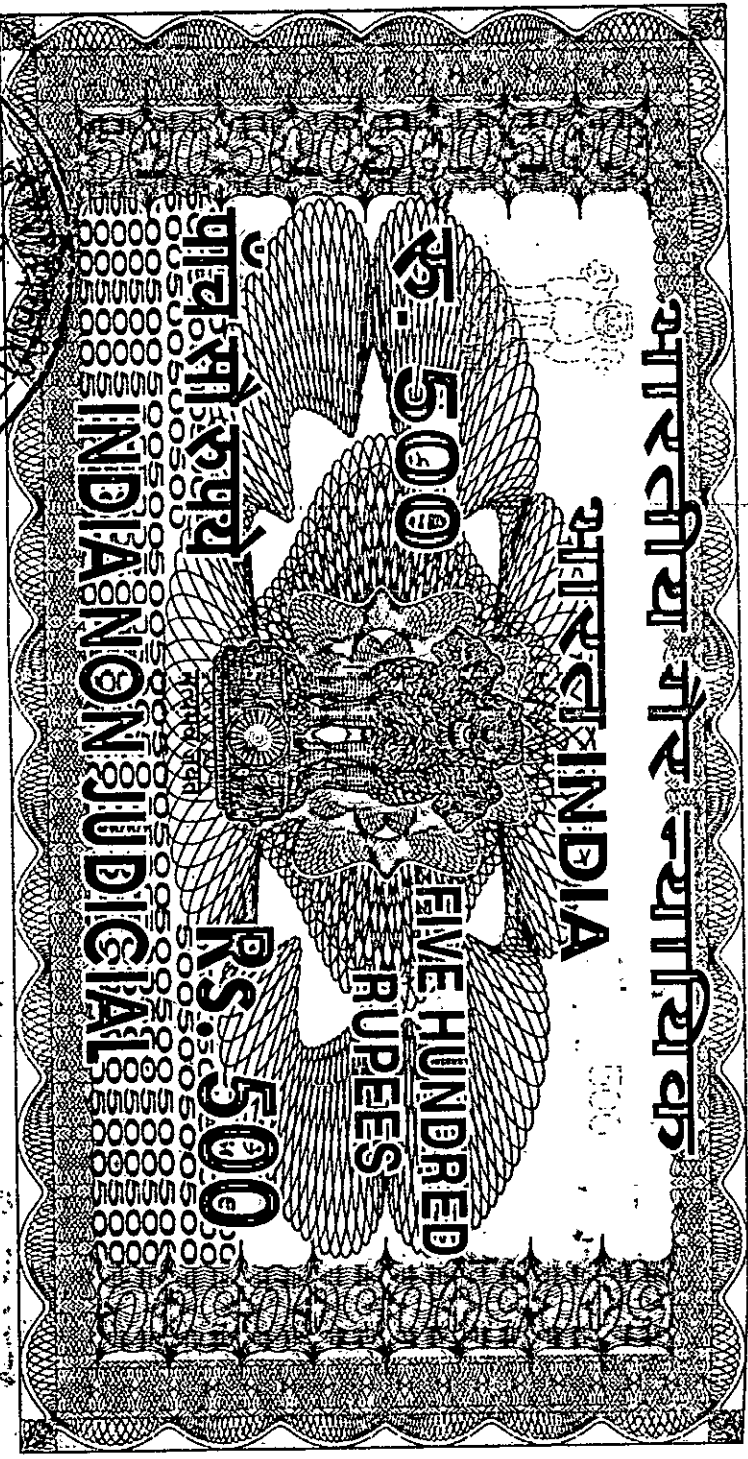
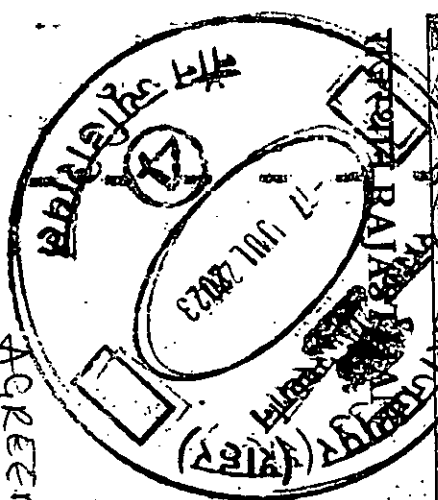




W 367195



LOAN CUM HYPOTHECATION
AGREEMENT THIS AGREEMENT FOR LOAN
IS EXECUTED AT THE PLACE AND DATE AS SPECIFIED

FORMENVOIS LABS PVT. LTD.
DIRECTOR

© 1995

18 JUL 2023

28-7-23
500

वेबसाइट पर LTV.

रेशम गान्धी मिशन

सकल सार्वजनिक कार्य

सकल सार्वजनिक कार्य

500



समवेत शोध
18 JUL 2023
सकल सार्वजनिक कार्य

सकल सार्वजनिक कार्य, 1998 के अन्तर्गत
स्टाम्प रशि पर प्रसारित अभिचार

1. आधारभूत अवसंरचना	1000
(धारा 7-क)-1998, सं. 50	500
2. सार्वजनिक सार्वजनिक	1000
(धारा 3-ब)-1998, सं. 50	500
3. सार्वजनिक सार्वजनिक	1000
(धारा 3-ब)-1998, सं. 50	500

सकल सार्वजनिक कार्य, 1998 के अन्तर्गत
स्टाम्प रशि पर प्रसारित अभिचार



To be stamped as
per State Laws

LOAN CUM HYPOTHECATION AGREEMENT

THIS AGREEMENT for loan is executed at the place and date as specified in the schedule between the Borrower/s, whose name(s), addressee(s) and other details are more particularly described in the Schedule hereunder written (hereinafter referred to as the "Borrower/s" which expression shall unless repugnant to the context or meaning there of shall include its successors and permitted assigns and all persons deriving/claiming title under the Borrower/s);

AND

AXIS BANK LIMITED, a company, carrying on the Banking business under the Banking Regulation Act 1949, Incorporated under the Companies Act, 1956 and having its Registered office at Trishul, 3rd Floor, Opposite Samartheshwar Temple, Law Garden, Ellis Bridge, Ahmedabad 380 006, Gujarat and having one of its Branch office at the place and address mentioned in the Schedule herein below (hereinafter called 'the Bank' which term unless the context otherwise requires includes its successors and assigns from time to time.

WHEREAS:

The Borrower /s has / have approached the Bank to avail a loan for the purpose of CE and the Bank, at the request of the Borrower/s, has agreed to grant / has granted such Loan Facility up to the limit(s) as specified in the Schedule herein below with full power to the Bank from time to time to renew or reduce or enhance the limit or altogether withdraw or cancel the facility without assigning any reason and on the terms and conditions appearing herein (hereinafter collectively and individually referred to as the said Loan Facility") vide sanction letter details of which are specified in the Schedule herein below.

DIRECTOR

...ATION OF THE Bank granting the Loan Facility as above, the Borrower/s hereby agrees, records and confirms with the Bank as follows:

1. The Borrower/s is/are in the business of OF and is/are desirous of obtaining new and advanced business equipment so as to improve the functioning and efficiency of their business and for this purpose have requested the Bank to grant a Loan under the CONSTRUCTION Scheme formed by the Bank. EQUIPMENT
2. The Borrower's application and the Sanction letter issued by Bank and accepted by the Borrower/s shall constitute the basis of this agreement and of the Loan Facility advanced/ to be advanced by the Bank hereunder and the Borrower/s hereby confirms the correctness of each and every statement and particulars therein set forth. Further the sanction letter shall always be deemed to be an integral part of this agreement.
3. The Bank has granted/agreed to grant to the Borrower/s the said Loan Facility in aggregate amount and at the rate of interest specified in the Schedule hereunder written on the terms and conditions set forth herein. The Bank at its discretion shall be entitled to modify, vary or amend the rate of interest from time to time including on account of changes in the applicable lending rate of the Bank or the changes made by the Reserve Bank of India in the rate of interest or its policies. In the event the rate of Interest is modified as stated above, then the interest would be payable by the Borrower/s at the revised rate of interest.

Interest on the amount of the Loan is to be applied at the fixed rate of interest stipulated in the Schedule to the Loan Agreement. The rate of interest will be fixed for the entire tenor of the loan.

4. The Borrower/s agrees and undertakes to notify the Bank, in writing, of any circumstances affecting the correctness of any of the particulars mentioned in the Borrower's application within seven days of the occurrence of any circumstance.
5. The principal amount of the Loan Facility shall, if not demanded earlier by the Bank as mentioned herein after, be repaid by the Borrower/s to the Bank to be paid as per repayment schedule stipulated in the sanction and more particularly mentioned in the Schedule hereunder written, provided however that the Bank shall be entitled to demand immediate repayment of the Loan Facility amount if any installment of interest/ Loan Facility instalment remains unpaid on the due date for payment thereof.
6. The Borrower/s agrees that the above Loan Facility shall be secured by mortgage / hypothecation of such security as stipulated by the Bank vide its sanction letter referred to in the Schedule herein below.
7. The Loan Facility shall be disbursed/has/have been disbursed by the Bank to the Borrower/s in installments or in one lump sum as may be necessary for the smooth implementation of the said scheme.
8. The Borrower/s shall pay interest on the Loan Facility at the rate more particularly mentioned in the Schedule attached hereto, to be calculated on the daily balances in the Loan Facility account(s) with monthly/quarterly/half yearly/yearly or other rests according to the practice of the Bank and as per the guidelines as applicable and issued by the Bank/RBI from time to time at the rate as mentioned in the Schedule hereunder. Provided that the Bank shall at any time and from time to time be entitled to change the rate of interest and such revised rate of interest shall always be construed as agreed to be paid by the Borrower/s and hereby secured. Borrower/s shall be deemed to have notice of change in the rate of interest whenever the changes in "Base Rate" are displayed/notified in/by the branch/published in newspaper/made through entry of interest charged in the pass book/statement of accounts sent to the Borrower/s. The Borrower/s hereby waives the requirement of notice on the revision of interest.

For WEVOIS LABS PVT. LTD.

I / We Confirm having read and understood the text contained in page no. 3 and 4 this agreement.

DIRECTOR		
1. Borrower	Co-Borrower-I	Co-Borrower-II

9. Further, without prejudice to the Bank's other rights and remedies, the Bank shall be entitled to charge at its own discretion enhanced rates of interest on the outstanding in the Loan Facility account(s) or a portion thereof or for any default or irregularity on the part of the Borrower/s which in the opinion of the Bank warrants charging of such enhanced rates of interest for such period as the Bank may deem fit.
10. Penal interest shall be leviable on any default by the Borrower/s in payment for dues or of any of the terms and conditions herein as specified in the Schedule below and the same shall be a charge on the properties secured under the Loan Facility and leviable from the date of the default without prejudices to the Bank's other rights available as per this agreement and on default/failure of the Borrower/s to pay the same. Provided also that the obligation to pay penal/additional interest shall not entitle the Borrower/s to set up a defence that no event of default as mentioned hereunder has occurred.
11. In the event of any default committed, the Bank shall have right to demand the repayment of entire amount of principal and interest thereon remaining due and outstanding which shall become payable forthwith.
12. The Borrower/s shall have no right to make premature repayment of the outstanding financial assistance in full or in part at any time except as specified hereto. In case the Borrower/s wants to prematurely repay the outstanding loan, the same shall however, be entirely at the sole discretion of the Bank and the acceptance of the said request shall be subject to such terms and conditions including prepayment premium, as may be stipulated by the Bank in this behalf.
13. In the event of Preclosure of loan, pre payment penalty will be levied by the bank as per schedule of charges.
14. With a view to induce the Bank to grant the Loan to him, the Borrower/s, hereby represents, warrants, covenants and undertakes with the Bank that the Borrower/s;
 - (a) has/have been duly formed and has the power to carry on the business as the Borrower/s is/are now being carried on and to own the property and assets and has/have the power to borrow the Loans and the signatories have the authority and necessary powers to execute the loan documentation on behalf of the Borrower/s;
 - (b) shall furnish to the Bank all such information, statements, particulars, estimates and reports etc. as the Bank may require from time to time as to the compliance with the terms of the Loan and shall also submit to the Bank, in form and detail satisfactory to the Bank, unaudited half yearly income statements of the Borrower/s within 4 (Forty Five) days of the close of each semi-annual period and copies of audited financial statements including including balance-sheet and profit and loss account (in detail and not in the abridged form) within 180 (one hundred eighty) days after the close of each financial year.
 - (c) shall not enter into any scheme of merger, amalgamation, compromise or reconstruction, reconstitution, dissolution etc. without the prior written consent of the Bank;
 - (d) shall not permit any change in the ownership or control of the Borrower/s whereby the effective beneficial ownership or control of the Borrower/s shall change, without the prior written consent of the Bank;
 - (e) shall not effect any material changes in the management of the business of the Borrower/s, without the prior written consent of the Bank;
 - (f) shall not make any amendments in the Borrower/s' Memorandum and Articles without the prior written consent of the Bank (in case of the Borrower being a company);
 - (g) shall make available to the Bank such security in such form and substance as may be required by the Bank;
 - (h) shall always have, until all the dues hereunder are not repaid to the Bank, a clear and marketable title to the property and assets provided as security for the Loan Facility, free from all encumbrances and shall not during the tenure of the Loan Facility either part with possession of or create third party rights in the assets constituting the Bank's security or any part of it (whether by way of sale, exchange, lease, mortgage, agreement or option or otherwise);

- (i) has no major pending claims, demands, litigation or proceedings against him before any court or authority (public or private);
- (j) shall ensure /utilize the entire loan for that the purpose for which the Loan Facility is advanced by the Bank is fulfilled in all respects and produce to the Bank, the necessary documents, as may be required by the Bank;
- (k) shall not, during the tenure of this Agreement, avail of or obtain any further loan or facility on the asset constituting the Bank's security without the prior written consent of the Bank.
- (l) shall in addition to the statement/s required by the Bank furnish such other information/documents concerning its trade, business, profession or otherwise as the Bank may require from time to time;
- (m) shall promptly inform the Bank of any loss or damage to the property constituting the Bank's security due to any force majeure or Act of God;
- (n) shall (in case of more than one Borrower) be jointly and severally liable to repay the Loan Facility, interest and all other sums due and payable under this Agreement and to observe its terms and conditions;
- (o) shall maintain the assets constituting the Bank's security in good order and habitable and /or usable condition and not allow it to deteriorate or commit any act which is destructive or permanently injurious to the property or do anything which will render the security in favour of the Bank, insufficient;
- (p) shall not stand surety or guarantor for any third party liability or obligation without first obtaining the permission of the Bank;
- (q) shall comply with all the terms of the Sanction letter and keep himself aware of the rules of the Bank, as pertaining to this Loan Facility, and in force from time to time;
- (r) shall ensure the officials of the Borrower/s executing this Agreement and the documents to be executed in pursuance thereof are duly and properly holding office and are fully authorised to execute the same;
- (s) shall utilize the Loan only for the purpose sanctioned;
- (t) agrees that any accretion to the said securities and other benefits from time to time accruing in respect of the said securities or any part thereof shall also be pledged/mortgaged with the Bank by the Borrower/s;
- (u) The Borrower hereby agrees and undertakes that no such person whose name is appearing in the list of Wilful defaulters shall be inducted on its board and that in case, such a person is found to be on its Board, it would take expeditious and effective steps for removal of such person from its Board.
- (v) The Borrower hereby acknowledges and agrees that the Bank has a right to award a separate mandate to our Auditor or any independent Auditor, as the Bank may deem fit with a view to obtain a specific certificate regarding diversion /siphoning of funds by the Borrower. The Borrower agrees and undertakes to co-operate with such Auditors and provide the necessary information and/or documents as may be required by such Auditors. The Borrower also agrees and undertakes to bear all the expenditure in respect of obtaining the said Certificate and agrees to indemnify and keep the Bank indemnified in this regard.

15. The Bank may, by a written notice to the Borrower/s, declare all sums outstanding under the Loan Facility (including the principal, interest, charges, expenses) have become due and payable forthwith irrespective of any agreed maturity and enforce the security created in favour of the Bank for the Loan Facility upon the occurrence (in the sole decision of the Bank), but not limited to, of any one or more of the following:

- (a) the Borrower/s commits any defaults in the payment of interest, principal, other charges or any obligation and in the payment of any other amounts to the Bank when due and payable,
- (b) the Borrower/s fails to pay to any of its creditors other than the Bank any amount when due and payable or any creditor other than the Bank demands repayment of the loan or dues or liability of the Borrower/s to such person ahead of its normal repayment terms as previously agreed between such creditor and the Borrower/s;
- (c) the Borrower/s defaults in performing any of its obligations under this Agreement or breaches any of the terms or conditions of this Agreement or any other security documents, undertakings etc. executed in favour of the Bank;

I / We Confirm having read and understood the text contained in page no. 5 and 6 this agreement.

For WEVOIS LABS PVT. LTD.

1. Borrower **DIRECTOR**

Co-Borrower-I

Co-Borrower-II

- (d) the death, failure in business, going into liquidation / dissolution, amalgamation or reconstruction, except with prior written approval of the Bank, general assignment for the benefit of creditors, if the Borrower/s suspends payment to any creditors or threatens to do so, filing of any petition of winding up against the Borrower/s
- (e) any of the information provided by the Borrower/s to avail the Loan Facility or any of the Borrower/s Representations, Warranties herein being found to be or becoming incorrect or untrue;
- (f) any person other than the Bank commencing proceedings to declare the Borrower/s insolvent or if the Borrower/s shall become bankrupt or insolvent or commit act of insolvency;
- (g) the value of the any security created or tendered by the Borrower/s, in the sole discretion and decision of the Bank, depreciates entitling the Bank to call for further security and the Borrower/s fails to give additional security;
- (h) the Borrower/s fails to create the security as provided herein; or
- (i) the Bank for any regulatory or other reasons, is unable or unwilling to continue the Loan facility;
- (j) if a Receiver or Receivers is/are appointed in respect of the whole or any part of the property/assets of the Borrower/s or if any attachment, distress, execution or other process against the Borrower/s, or any of the securities is enforced or levied upon
- (k) if the Borrower/s ceases or threatens to cease or carry on its Business or if the Co-Borrower opts to resign or retires from the employment prior to the age of super-annuation or is discharged or removed from service such date for any reason whatsoever;
- (l) if it is certified by an Accountant or a Firm of Accountants appointed by the Bank (which the Bank is entitled and hereby authorised to do so at any time) that the liabilities of the Borrower/s exceed the Borrower's assets or that the Borrower/s is carrying on business at a loss;
- (m) If the Borrower/s fails to pay any tax, imposts, duties, levies, other taxes or impositions in relation to the hypothecated as may be applicable under laws or regulations from time to time;
- (n) if any circumstance or event occurs which would or is likely to prejudicially or adversely affect in any manner the capacity of the Borrower/s to repay the Loan Facility or any part thereof;
- (o) if the Loan Facility or any part thereof is utilised for any purpose other than the purpose for which it is applied by the Borrower/s and sanctioned by the Bank;
- (p) if any attachment, distress, execution or other process against the Borrower/s, or any of the securities is enforced or levied upon;
- (q) if any circumstance or event occurs which is prejudicial to or impairs or imperils or jeopardizes or is likely to prejudice, impair, imperil, depreciate or Jeopardise any security given by the Borrower/s or any part thereof;
- (r) if the Borrower/s, without prior written consent of the Bank, attempts or purports to create any charge, mortgage, pledge, hypothecation, lien or other encumbrance over the Borrower/s property or any part thereof, which is or shall be the security for the repayment of the said dues except for securing any other obligations of the Borrower/s to the Bank;
- (s) upon happening of any substantial change in the constitution or management of the Borrower/s without previous written consent of the Bank or upon the management ceasing to enjoy the confidence of the Bank;
- (t) if the Borrower/s fails to furnish any information or documents required by the Bank;
- (u) if the Borrower/s fails to furnish to the Bank detailed end use statement of the Loan as and when so required by the Bank within the time prescribed by the Bank;
- (v) all or substantially all of the undertaking, assets or properties of the Borrower/s or its interests therein are seized, nationalised, expropriated or compulsorily acquired by the authority of Government;
- (w) For individuals

The Borrower agrees that he/she is not a politically exposed person (PEP) and further undertakes to inform Axis Bank in the event that he/she and/or any of their family members /close relatives becomes a PEP. In such an event, the Bank will obtain approval from its senior management to continue the business

relationship and subject the account to the Customer Due Diligence measures as applicable to the customers of PEP category including enhanced monitoring on an ongoing basis.

Definition -Politically exposed persons are individuals who are or have been entrusted with prominent public functions in a foreign country, e.g., Heads of States or Governments, senior politicians, senior government/judicial/military officers, senior executives of state-owned corporations, important political party officials, etc.

For non individuals

The Borrower agrees that none of its Director/Partner/Trustee/Office Bearer/Promoter/Authorised Signatory/Beneficial owner in the organisation or any of their family members /close relatives is/are a politically exposed person (PEP) and further undertakes to inform Axis Bank in the event that either of them becomes a PEP. In such an event, the Bank will obtain approval from its senior management to continue the business relationship and subject the account to the Customer Due Diligence measures as applicable to the customers of PEP category including enhanced monitoring on an ongoing basis.

Definition -Politically exposed persons are individuals who are or have been entrusted with prominent public functions in a foreign country, e.g., Heads of States or Governments, senior politicians, senior government/judicial/military officers, senior executives of state-owned corporations, important political party officials, etc.

16. Notice on the happening of an event of default:

if any event of default or any event which, after the notice or lapse of time or both would constitute an event of default shall have happened, the Borrower/s shall forthwith give the Bank notice thereof in writing specifying such event of default, or such event. The Borrower/s shall also promptly inform the Bank if and when any statutory notice of winding-up under the provisions of the Companies Act, 1956 or any other law or of any suit or legal process intended to be filed/initiated against the Borrower/s, is received by the Borrower/s.

17. Further, the Bank shall be entitled to forthwith take physical possession of the assets hypothecated and/or mortgaged to the Bank and alienate sell, transfer the said properties either by itself or through its agents and sell or otherwise deal with the same to enforce the Bank's security and recover the dues in terms of clause 36 to this agreement

18. The Borrower/s agrees and undertakes not to prevent or obstruct the Bank from taking possession of the properties irrespective of whether the loan has been recalled whenever in the opinion of the Bank, there is an apprehension of any money not being paid or the Bank's security is being jeopardized and that the Bank's representatives will be entitled to sell, give on rent, or otherwise deal with the properties by public or private auction or private treaty, without being liable for any loss, and to apply the net proceeds thereof as specified in these presents.

19. The Borrower/s shall pay any deficiency, forthwith to the Bank. The Bank shall also be entitled to adjust and a right of set-off on all monies belonging to the Borrower/s standing to his credit in any account whatsoever with the Bank towards payment of such deficiency. Nothing contained in this clause shall oblige the Bank to sell, hire or deal with the properties and the Bank shall be entitled to proceed against the Borrower/s independent of such other security. The Borrower/s agrees to accept the Bank's accounts in respect of such sale, hire, dealing or otherwise as conclusive proof of the correctness of any sum claimed to be due from the Borrower/s. In case of any deficit, the deficit amount shall be recovered by the Bank from the Borrower/s.

For WEVOIS LABS PVT. LTD. We confirm having read and understood the text contained in page no. 7 and 8 this agreement.

[Signature]

DIRECTOR

1. Borrower

Co-Borrower-I

Co-Borrower-II

20. The Bank may, at the risk and cost of the Borrower/s, engage one or more person(s) to collect the Borrower's outstanding and/or to enforce any security and may furnish to such person the right and authority to perform and execute all acts, deeds, matters and things connected therewith or incidental there to as the Bank thinks fit.
21. In consideration of the Bank having granted/agreed to grant the Loan Facility, the Borrower/s hereby HYPOTHECATES to and charges, as security to the Bank, for securing the moneys that may from time to time become due and payable by the Borrower/s to the Bank and the Balance Due to the Bank, by way of First Exclusive charge in favour of the Bank the assets of the Borrower/s, which are more particularly described in the Schedule hereto (hereinafter referred to as "Hypothecated Assets") and the same SHALL BE AND STAND HYPOTHECATED to the Bank by way of first charge as security for the due repayment of Loan Facility and also for all indebtedness or liabilities of the Borrower/s to the Bank together with all interest, commissions, costs, charges and expenses payable to or incurred by the Bank including those for the enforcement of any of the security (ies). *Provided that* in case the Hypothecated Asset(s) is yet to be purchased or has not been delivered and/or registered with the appropriate authority, wherever applicable, at the time of signing of this agreement, then the particulars of the assets shall be intimated to the Bank in writing with all the relevant particulars of the assets including the registration details of the assets as may be applicable, whereupon such intimation in writing shall form part of the Schedule attached and shall be deemed to have been incorporated in this Agreement.
22. If the Hypothecated Assets are required to be entrusted by the Borrower/s to any other person(s) for further furnishings, body building etc. then the Borrower/s shall intimate the details of such person(s) or organisations with which the Borrower/s have entrusted the Hypothecated Assets for such purpose and also shall keep such persons or organisation informed of the rights of the bank over the said assets. The Borrower/s shall also, if so required by the Bank, produce the necessary letters etc. from such person(s) or organisations acknowledging the Bank's charge over the same and also consenting for the inspection etc. at their premises.
23. The Borrower/s declare and confirm that the Bank shall not be liable or responsible for the delivery of the assets to the Borrower/s or delivery of the duly endorsed registration certificates or any other documents and the Borrower/s shall in no way entitled to withhold or stop the repayment of the stipulated instalments or interest, as the case may be, on account of such non-delivery or delay in delivery.
24. This hypothecation made herein shall operate as a security to the Bank in addition to any other security, if any, already held by the Bank for the repayment to the Bank on demand of the balance due to the Bank by the Borrower/s at any time or ultimately on the closing of the said Accounts upto the aggregated amount of the Loan Facility as mentioned in the Schedule hereunder. The expression 'the balance due to the Bank' shall be taken to include the principal moneys from time to time due on the said Loan Facility whether demanded or not and also all interests including additional interest, if any, penal interest, commission charges, interest tax, liquidated damages by whatever name called, calculated from day to day on a manner and at the rate hereinafter mentioned and the amount of all cost (between Attorney and Client) charges and expenses of the Bank which the Bank may have paid or incurred in any way in connection with the Hypothecated Assets and other assets including the sale and disposal thereof and any other sum that is hereunder declared as can be debited to the accounts and interest thereon.
25. The Borrower/s shall submit and continue to submit from time to time all the relevant statements and other related papers pertaining to the Hypothecated Assets and shall maintain the Hypothecated Assets in good order and marketable at all the times.
26. The Bank shall have the right of lien and set off against any of the balances in the account of the Borrower/s in accordance with the provisions of this agreement and/or under the law.
27. The Borrower/s shall not create any charge over any property whether secured or unsecured except with the permission of the Bank.
28. The Borrower/s shall not bank with any other Bank without the written consent of the Bank.
29. The Borrower/s shall not create any lien on the properties/goods hypothecated to the Bank.

DIRECTOR

30. The Borrower/s shall take all step to get the hypothecated vehicles registered with the authorities immediately as may be required under the law and shall submit, the proof of such registration to the Bank within 7 days from the date of the registration and shall take such necessary steps to ensure that the RC Book of the vehicles contain an endorsement in the name of the Bank in its capacity as Lender / Financier of the said vehicle. The Borrower/s agree and undertake that they shall get the endorsement for hypothecation done in the registration certificate from the registration authority concerned and such endorsement shall be made in the name of "Axis Bank Limited". Apart from registering the hypothecation charge as stated above, in case of the corporate Borrower/s the necessary charge shall be registered with the Registrar of Companies concerned also within the stipulated time limit and in the manner acceptable to the Bank.
31. The security over the Hypothecated Assets, the charge created over the same and all other rights of the Bank shall continue to be valid and enforceable as a security for the due repayment and payment by the Borrower/s of all dues under the said Loan Facility along with all applicable fees, costs, charges and other monies that may become due and payable by the Borrower/s and till such time the entire dues are paid off and the Bank issues a certificate releasing the security so created and the security created/to be created shall not affect in any way by any change in the constitution, merger, de-merger, dissolution, winding up or any other kind of changes of the Borrower/s and shall always remain to be valid and enforceable against the Borrower/s.
32. The Borrower/s shall also provide a suitable third party guarantee as and when required and also if so stipulated in the sanction letter. Without prejudice to the Bank's absolute right in its uncontrolled discretion without any notice, reference of intimation to Borrower/s without Borrower/s' consent to adjust appropriate or set off at any time and from time to time any amount received or to be received by the Bank from the Borrower/s or any amount due or to become due to Borrower/s in any current, savings, term deposit or any deposit account or any account whatsoever at any of the Bank's branches whatsoever, any amount received or to be received by the Bank may first be appropriated by the Bank towards costs, charges and expenses incurred by the Bank and surplus amount, if any, may thereafter be appropriated by the Bank towards interest chargeable by the Bank and surplus amount, if any, may lastly be appropriated by the Bank towards principal amount due to the Bank.
33. The Guarantor hereby agrees that, the Guarantor is liable to be treated as a Willful defaulter in terms of the applicable RBI guidelines, in the event, the Lender/Bank makes a claim on the guarantor on account of the default made by the principal debtor, and the Guarantor refuses to comply with the demand made by the Lender/ Bank, despite having sufficient means to make payment of the dues.
34. Notwithstanding the Bank's decision/action/policy, if any to reverse any debit entry or not to debit interest or not to make any debit entry in Bank's books or in ledger account or in statement of account or any account, for any period whatsoever, the Borrower/s shall be bound and liable to pay jointly and severally to the Bank, the entire outstanding, debit balance and compound interest thereon with quarterly rests till the date of realization, recovery or collection by the Bank of all such amounts plus interest, penal interest, interest tax, additional interest, if any, liquidated damages, Commission, costs, charges and expenses at such rates as may be prevailing or fixed or to be fixed by the Bank from time to time without any reference, notice or intimation by the Bank at any time whatsoever.
35. Borrower/s do hereby agree, undertake, record, declare, admit, assure, promise, acknowledge and confirm to abide by, accept, satisfy, fulfil, carry out, perform and comply fully with all the terms, conditions, requirements, sanctions, provisions and stipulations or any amendments or modifications therein made or to be made by the Bank at any time or from time to time in its discretion concerning any of my/our facilities, limits or accounts without any reference, notice or intimation by the Bank in that behalf.

I / We Confirm having read and understood the text contained in page no. 9 and 10 this agreement.		
For WEVOIS LABS PVT. LTD.		
 DIRECTOR I. Borrower	Co-Borrower-I	Co-Borrower-II

36. Any stamp duty, penalty, registration charges, or deficit therein, if any, payable on this document shall be borne and paid by the Borrower/s and not by the Bank.
37. In the event of default, notwithstanding anything in contrary, the Bank shall be entitled at its absolute discretion to inter alia:
- a) Call upon the Borrower/s by issuance of a 7 days loan recall notice (or forthwith in exceptional scenarios as mentioned hereinafter) to pay forthwith the outstanding balance of the loan together with the interest and all sums due and payable by the Borrower/s under this Agreement. The requirement of 7 days notice will be dispensed with in case any fraud is perpetrated by the Borrower or persons/entity providing securities or if the effect or consequence of an event, circumstance, occurrence or condition which has caused in the opinion of the Bank, as of any date of determination, or could reasonably be expected to cause a material and adverse effect on: (i) the financial condition, business or operation of the Borrower, the persons/entities providing the securities or any Person who is party to any loan/security documents executed in connection with the credit facilities provided to the Borrower; (ii) the ability of the Borrower, to perform their respective obligations under the loan/security Documents; (iii) the legality, validity or enforceability of any of the loan/security documents executed for the benefit of the Bank (including the ability of the Bank to enforce any of its remedies under the loan/security documents executed in connection to the credit facilities sanctioned to the Borrower).
 - b) Repossession of the Asset(s): To take possession of the Hypothecated Asset(s) after expiry of the notice period mentioned in clause (a) above from wheresoever it may be stored/kept/parked the Asset(s) including all accessories, body work, and fittings and for that purpose, it shall be lawful for the Bank or the Bank's authorized representatives, servants, agents, officers forthwith or any time enter upon the premises or garage where the Hypothecated Asset(s) shall be lying and kept and to take possession or recover or receive the same if necessary to break open such place of storage. Any damage to the land or building caused by removal of the Asset(s) shall be the sole responsibility of the Borrower(s). The possession as contemplated in the aforesaid clause would be done in conformity with the recovery policy of the Bank which is available in the Banks website www.axisbank.com, the terms whereof are deemed to be part and parcel of these presents.
 - c) To take all necessary steps as fully and effectively as the Borrowers could take to dispose off the Assets at the risk and cost of the Borrowers in all respect after issuance of a pre-sale notice intimating the Borrower/security provider of the proposed sale. The notice amongst others shall grant the Borrower/security provider reasonable time to repay the outstanding debt due and payable to the Bank. In case the Borrower/security provider pay the due and payable amount to the satisfaction of the Bank within the time lines mentioned in the pre sale notice, the proposed sale shall be called off by the Bank and the Assets shall be handed over back to the Borrower/security provider at the costs and expense of the Borrower/security provider. On the contrary, if the Borrower/security provider fails to pay the due and payable amount within the time lines prescribed, Bank shall proceed to sell the Assets either through public or private auction as deemed appropriate.
 - d) The Borrowers shall not raise any objection to the regularity of sale or other disposition made by the Bank nor shall the Bank be responsible for any loss that may arise from any act or default on the part of any broker or auctioneer or other person or body employed by the Bank or the receiver for the purpose of the sale or disposition. e) In the event of there being any surplus available of the net proceeds of such sale after payment in full of the balance due to the Bank, it shall be lawful for the Bank to retain and apply such proceeds together with any money or monies belonging to the Borrower for the time being in the hands of the Borrower or under whatever account as far as the same shall extend against in or towards liquidation of any monies that shall be or may become due from the Borrower or any of its group companies/associates/guarantors/directors/promoters to the Bank or the Banks group companies.
 - e) The Borrower expressly recognizes and accepts that the Bank shall, without prejudice to its rights to perform such activities either itself or through its officers or servants and be absolutely entitled and have full power and authority to appoint one or more third parties at the sole discretion of the Bank and to transfer or delegate to such third parties the right and authority to collect on behalf of the Bank all unpaid amounts and to perform and execute all acts, deeds, matters and things connected therewith or incidental thereto.

DIRECTOR

38. In the event of default – Penal Interest

- a) All amounts in default for payment, due to delay or non-payment of EMI/Installment or interest thereon including any costs, charges and expenses or due to occurrence of any other Event of Default [as per Sec 37], shall be debited to the loan/drawal account and in such case Bank shall also levy the penal interest and other charges as applicable and prescribed in the [Schedule of Loan cum Hypothecation agreement], in the said loan/drawal account for the period of default without there being any need to assign a reason for the same, which shall be paid by the Borrower.
- b) However, if Borrower fails to make the payment of above said amounts in default for payment or the penal interest and other charges levied by the Bank within 90 days from the due date of such payments, in that case said loan/drawal account shall be classified as Non Performing Asset ("NPA").
- c) In order to regularise the said loan/drawal account, the Borrower shall be liable to pay all the above mentioned amounts in default and/or penal interest and other charges, as the case may be, [on immediate basis]

39. The Bank reserves its right to appoint at its discretion such persons as its agents and trustees as the Bank may deem fit and the Borrower/s accepts and acknowledges that such agents and trustees shall have the right to demand payment from the Borrower/s of all amounts due and payable by the Borrower/s to the Bank, to receive such payments from the Borrower/s, to seize/repossess the security charged in favour of the Bank for the Loan Facility granted, to proceed against the Borrower/s for recovery of the Loan Facility, to foreclose the security created by the Borrower/s, to file suits and take legal proceedings against the Borrower/s and other persons, including but not limited to the co-Borrower/s and guarantors), if any, for recovery of all or any of the amounts due by the Borrower/s to the Bank and to do all such acts, deeds and things as the agents and trustees may be entitled to do pursuant to the authority granted to them by the Bank.

40. The Fair Practice Code for the Lenders as published on the Axis Bank's website, shall apply to the Loan, Copy of the Fair Practice Code for lenders as available on the Bank's website

<https://www.axisbank.com/docs/default-source/default-document-library/fair-practice-code-for-lenders.pdf>

41. The Borrower/s hereby agrees and confirms that in the event the Bank repossesses the Hypothecated Assets, the Bank shall be at liberty either to keep the said security in the premises wherein they may be lying at the time of re-possession thereof and affix Bank locks to such premises or to remove the security to any other premises. In the event of the Bank repossessing the hypothecated security or appointing an agent or representative or a receiver thereof, neither the Bank nor the receiver shall in any way be liable and/or responsible, notwithstanding anything to the contrary contained in Section 152 of the Indian Contract Act, 1872 and/or any other law for the time being in force for any damage, loss, deterioration to the hypothecated security, whether by theft, fire, flood, earthquake, drought, lightening or any other cause whatsoever.

42. The Borrower/s hereby agrees and confirms that in the event the Bank repossesses the hypothecated security, the Bank shall be at liberty to appoint any officer of the Bank as a receiver of the hypothecated security and/or sell by public auction or private contract or otherwise dispose of or deal with all or any part of the hypothecated security at such price as may be determined by the Bank in its absolute discretion (and the decision of the Bank with respect to the price or any other matter related thereto, shall be final and binding on the Borrower/s) and to enforce, realize, scale, compromise and deal with an or the rights aforesaid without being liable for any loss in exercise thereof and without prejudices to the Bank's rights and remedies of suit against the Borrower/s and to apply the net proceeds such sale in or towards the liquidation of the balance due to the Bank. The Borrower/s hereby accepts the Bank's account of sales, realizations and to pay any shortfall or deficiency therein shown.

I / We Confirm having read and understood the text contained in page no. 11 and 12 this agreement.

For WEVOIS LABS PVT. LTD.

1. Borrower DIRECTOR

Co-Borrower-I

Co-Borrower-II

43. In the event, the net sum realized by such sale be insufficient to cover the balance then due to the bank, the Bank shall be at liberty to apply any other moneys in the hands of the Bank and standing to the credit of, or belonging to the Borrower/s, in or towards payment to the balance for the time being due to the Bank.
44. The Borrower/s hereby irrevocably and unconditionally appoints the Bank as its true and lawful attorney to do and execute for and in the name and on behalf of the Borrower/s and where the Borrower is more than one Individual, Jointly and severally, all or any of the acts, deeds and things, specified therein and agree and declare that all such acts, deeds and things done by the Bank in its capacity as attorney of the Borrower/s are and hereby ratified by the Borrower/s and shall always be binding on the Borrower/s as if the same has been done by the Borrower/s itself. Further, the Bank shall be entitled to exercise the Powers granted under this clause through any of its officers authorized by the Bank in that behalf.
45. The Bank may assign or otherwise transfer the Loan Facility (or the portion thereof respectively advanced by them) to any third party and pursuant to which the Bank shall be entitled to assign the Security created herein with all or any rights under this Agreement without the prior written consent of the Borrower/s. The Borrower/s confirm unconditionally and irrevocably that it shall have no objection in case the Bank decides to assign/sell a part of or the entire Loan Facility along with securities of the said Hypothecated Assets to another bank / institution / limited company / Government body or department (assignee / buyer). In such case the Borrower/s agrees that it shall become the primary Borrower/s of such assignee / buyer and shall at no point of time raise any objection, legal or otherwise regarding assignment, transfer and sale of the securities by the Bank in favour of the assignee / buyer.
46. The Borrower also agrees, undertakes and confirms as under:
- (a) The Borrower understands that as a precondition relating to the grant of and/or continuing the grant of the Facility to the Borrower, the Bank required the Borrower's consent for the disclosure by the Bank of information and data relating to the Borrower, of the Facility availed of/ to be availed by the Borrower, in discharge of thereof
- (b) Accordingly, the Borrower hereby agrees and gives consent for the disclosure by Bank of all or any such:
- (A) information and data relating to the Borrower;
- (B) the information of data relating to the Facility/Financing Documents; and
- (C) default, if any, committed by the Borrower, in discharge of the Borrower's obligations under the Facility, as the Bank may deem appropriate and necessary, to disclose and furnish to Credit Information Companies ("CIC") and any other agency authorised in this behalf by Reserve Bank of India ("RBI") and/or to Insolvency and Bankruptcy Authorities ("IBA") or any other person pursuant to the Insolvency and Bankruptcy Code, 2016; and/or to any other statutory or regulatory or law enforcement authority (including Court and/or Tribunals).
- (c) The Borrower declares that the information and data furnished by the Borrower to the Bank are true and correct and hereby irrevocably agrees to promptly authenticate the 'financial information submitted by the Bank/Lender, as and when requested by the concerned 'IU'
- (d) The Borrower also undertakes that:
- (A) Any CIC and any other agency so authorised may use, process the said information and data disclosed by the Bank in the manner as deemed fit by them; and
- (B) Any CIC and any other agency so authorised may furnish for consideration, the processed information and data disclosed or products thereof prepared by them, to bank(s)/financial institution(s) and other credit grantors or registered users, as may be specified by the RBI in this behalf.
- (e) The Borrower agrees, undertakes and authorizes the Bank to exchange, share or part with all the information, data or documents or other information as mentioned in this Clause 13.8 (e) and also the information relating to the conduct of the Borrower's accounts, credit history or repayment record, with other banks / financial institutions involved in the financing arrangement to the Borrower, whether under consortium or multiple banking or sole banking arrangement and also with the banks/ financial institutions intending to finance the Borrower, as the Bank may deem necessary or appropriate as may be required for use or processing of the said information / data by such banks/ financial institutions or furnishing of the processed information / data to other banks / financial institutions / credit providers and the Borrower shall not hold the Bank liable in any manner for use of such information.
- (f) The Borrower agrees that in case the Borrower commits a default in payment or repayment of any amounts in respect of the Facility, the Bank and/or RBI will have an unqualified right to disclose or publish the details of the default and the name of the Borrower, its directors, partners, as the case may be, as defaulters, in such manner and through such medium as the Bank or RBI in their absolute discretion may think fit.
47. The Borrower commits a default in repayment of dues and consequently the account is to be classified as NPA, all other borrowal accounts of the Borrower, with the Bank also shall be classified as NPA as per the guidelines issued by RBI.

48. All disputes, differences and / or claim or questions arising out of these presents or in any way touching or concerning the same or as to constructions, meaning or effect thereof or as to the right, obligations and liabilities of the parties hereunder shall be referred to and settled by arbitration and Conciliation Act, 1996 or any statutory amendments thereof, of a sole arbitrator to be nominated by the Lender/Bank, and in the event of death, unwillingness, refusal, neglect, inability or incapability of a person so appointed to act as an arbitrator, the Lender/Bank may appoint a new arbitrator to be a sole arbitrator. The arbitrator shall not be required to give any reasons for the award and the award of the arbitrator shall be final and binding on all parties concerned. The arbitration proceedings shall be held Mumbai / Delhi / Chennai / Kolkata.
49. "The Borrower do hereby confirm and agree that the sanction of credit facilities are at the sole discretion and subject to adherence of Terms and Conditions as may be stipulated by the Bank from time to time and also subject to the regulatory and statutory guidelines, as may be applicable from time to time. The Bank shall have no obligation to provide any further financial assistance to the Borrower and the Borrower understands that any such further facilities shall be allowed only subject to proper review of the credit facilities enjoyed and subject to eligibility criteria of the Bank from time to time.
50. "The Borrower hereby agree and confirm that as and when directed by the bank, the company shall arrange to provide certificate from its Statutory Auditors declaring the end use of the funds disbursed by the Bank and in case the Borrower fails to provide the same the Bank shall have absolute right to seek such certificate from the Statutory Auditor of the Company, for which, this confirmation shall be deemed a standing instruction for the same."

The Arbitration shall be in English / Hindi language (or any appropriate language of RAC's choice)."

IN WITNESS WHEREOF the Borrower/s has/have set his/their hand(s) to these presents on this the day and year stated hereunder.

To be used in case the Borrower is a Proprietorship Concern	SIGNED & DELIVERED By the with named borrower Shri _____ As Sole Proprietor of M/s _____
To be used in case the Borrower is an Individual	SIGNED & DELIVERED By the with named borrower Shri _____
To be used in case the Borrower is a Partnership Firm	SIGNED & DELIVERED By the with named borrower 1. _____ 2. _____ For and on behalf of M/s _____ For WEVOIS LABS PVT. LTD. <i>[Signature]</i> DIRECTOR
To be used in case the Borrower is a Company	SIGNED, SEALED & DELIVERED For and on behalf of M/s WEVOIS LABS PVT. LTD. The common Seal of the above mentioned Borrower has been hereunto affixed pursuant to the resolution of its Board of Directors Passed in that Behalf on the _____ Day of _____ 20 in the presence of 1. _____ 2. _____ <i>[Signature]</i> DIRECTOR
To be used in case the Borrower is a Society / Trust	SIGNED & DELIVERED By the with named borrower M/s _____ Through its authorised signatory Shri _____ Pursuant to the resolution passed at its meeting held on the _____ Day of _____ 20 in the presence of 1. _____ 2. _____

For the Bank
Signed and delivered by
Axis Bank Ltd. by the hand
of its authorised signatory : Mr./Ms. _____

Place: **JALPOUR**
Date: **18/07/23**

For WEVOIS LABS PVT. LTD. _____
I, _____, having read and understood the text contained in page no. 13 and 14 this agreement.

1. Borrower **DIRECTOR**

Co-Borrower-I

Co-Borrower-II

SCHEDULE TO LOAN CUM HYPOTHECATION AGREEMENT

A) AGREEMENT DETAILS: 1. Place of Agreement: JALPUR 2. Date of Agreement: 16/07/23

B) Borrower details:

i) Description of the Borrower:	
Name	<u>WEVOIS LABS PRIVATE LIMITED</u>
Address	<u>293 HEERA NAGAR JALPUR 293 HEERA NAGAR - A JALPUR JALPUR</u>
Constitution	<u>RASHIDAHN 202021</u>
ii) Description of the Co-Borrower:	
Name	
Address	
Constitution	
i) Description of the Borrower:	
Name	
Address	
Constitution	
ii) Description of the Co-Borrower:	
Name	
Address	
Constitution	

C) Loan/Facility details and other charges

S. No.	Particulars	Details
i)	Loan Amount	<u>470000/-</u>
ii)	Purpose (New / Used)	<u>NEW</u>
iii)	Rate of Interest	☐ (For loans with tenor upto 36 months) - 1 Year MCLR % p.a. + Spread % p.a. = "Effective Rate of Interest <u>9.11</u> % p.a.", No Reset ☒ (For loans with tenor > 36 months) - "Effective Rate of Interest <u>9.65</u> % p.a."
iv)	Amortization of Loan:	
a)	Tenure of Loan (in years)	<u>4 YEARS</u>
b)	Number of Monthly Installment / EMI	<u>47</u>
c)	Number of Advance Installment / Installment in Arrear	<u>NPL</u>
d)	Manner of payment of Monthly Installment	<u>Fixed/variable [structure details set out in hereto]</u>
e)	Date of commencement of the Monthly Installment	<u>20</u>
f)	Due date of payment of first Monthly Installment	<u>20/08/2023</u>
vi)	Mode of Repayment: SI / NACH Mandate / PDC / NPDC	<u>NACH</u>
i)	Account No.	<u>YESBANK 002484600006982</u>
ii)	Name and Address of the branch of the Bank where the aforesaid Account is held	<u>019 GROUND FLOOR ASHOK MARG, C SCHEM JALPUR</u>
Penal Interest : 2% per month		
Periodicity of Interest Compounding: <u>MONTHLY</u> rests		
Cheque return Charges: Rs. 339/- per cheque return		
Cheque swapping charges Rs. 500/- per transaction		
Loan Cancellation/Re-booking charges Rs. 550/-		
Statement Charges Rs. 250/-		
Duplicate Repayment Schedule Charges Rs. 250/-		
Duplicate No Dues Certificates/NOC charges Rs. 50/-		
Documentation charges Rs 500/- <u>300</u>		
Registration Certificate Collection Charges Rs 200/-		
Valuation charges : Valuation Charges: "Valuation charges to be collected at Actuals: -Used Commercial Vehicle (Standard assets)- Rs.765/-* per asset -Used Construction Equipment (Standard assets)- Rs.885/-* per asset For all Non Standard assets- Valuation charges to be collected at actuals (* Inclusive of GST)		
ROC Charge creation fees (Only for company cases) Rs 2500/-		
Foreclosure Charges	5% of Principal Outstanding Plus GST	
Part PrePayment Charges	5% of Principal Outstanding Plus GST	
Service Charge/Processing Fee:	<u>12500/-</u>	
GST:	<u>18%</u>	
Stamp Duty - As applicable according to State Stamp Law.	<u>PASBPBY CUSTOMER</u>	
Issuance of Credit Report Rs. 50/-		

*Goods and Services Tax (GST) will be charged extra as per the applicable rates, on all the charges and fees (wherever GST is applicable)

D) Description of Vehicle

S. No.	Particulars	Details
i)	Cost of vehicle / Valuation amount	<u>588800/-</u>
ii)	Make and Year of manufacture	<u>2023</u>
iii)	Type of CV/CE / Model No.	<u>CE 01N0S DATUM IRL MODEL</u>
iv)	Registration/Serial No.	<u>NEW</u>
v)	Age of the Commercial Vehicle	<u>NEW</u>
vi)	Engine No.	
vii)	Chassis No.	
viii)	Address where the Commercial Vehicle is already kept/fixed/located OR is to be normally kept/fixed/located	<u>JALPUR ROTOR</u>
ix)	Name of Seller/Dealer/DSA	
x)	Insurance Value (IDV Value)	